



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 4TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD AT THE SESSION HALL (LEGISLATIVE HALL) IN BARANGAY PAMORANGON, DAET, CAMARINES NORTE ON THE 25TH DAY OF JANUARY, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING
Municipal Vice-Mayor / Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT
HON. TOMASITO SANTIAGO C. TURINGAN
HON. APOLONIO B. PANONG
HON. FELIX C. ABAÑO
HON. WILLIAM CARLO R. AVILA

HON. MARLON T. BANDELARIA
HON. NESTOR F. DALIDA
HON. PEDRO S. MUSA – LNB
HON. JUDY ROSE T. GALLARDO – SKMF

ABSENT:

COUN. ROSSANO C. VALENCIA

- On Official Leave of Absence (FL)

Resolution No. 022-2021

RESOLUTION ADOPTING AN ORDINANCE GRANTING MORATORIUM ON PAYMENT OF NEW RATE WHICH IS APPLICABLE FROM 2 AUGUST 2020 FOR THE COMMERCIAL STALLS LOCATED AT THE GROUND FLOOR OF THE DAET ELEVATED TOWN PLAZA OF THIS MUNICIPALITY UNTIL DECEMBER 31, 2020

WHEREAS, the Municipal Ordinance No. 352-2019 entitled: An ordinance creating the rules and regulations governing the operation and administration of the commercial stalls located at the ground floor of the Daet Elevated Town Plaza of this Municipality, imposed rental fee to the commercial stalls located thereat;

WHEREAS, the rate equivalent to three hundred percent (300%) of what was due monthly to the LGU-Daet before the expiration of the contract of lease on 1 August 2019 took effect from 2 August 2019 to 1 August 2020;

WHEREAS, the per square meter rate shall begin from 2 August 2020 to 1 August 2021 which shall escalate every year by five percent (5%) of the monthly rental applicable during the prior year;

WHEREAS, the stallholders of commercial stalls at Daet Elevated Town Plaza through their legal counsel Atty. Archimedes O. Yanto appealed to Mayor Benito S. Ochoa for deferment in the imposition of the rental fee applicable from 2 August 2020 until the crisis of COVID-19 pandemic ends;

WHEREAS, dialogue between LGU Daet through the Office of the Mayor and stallholders of Daet Elevated Town Plaza was conducted on January 22, 2021 to negotiate on their appeal;

WHEREAS, based on the report of the Municipal Treasury, the six (6) months deferment of new rental rate from August to December 2020 already cost the LGU Daet the amount of P 2,063,275.06 unrealized revenue;

WHEREAS, the Office of the Mayor during Committee Hearing on January 22, 2021 provided their final recommendation based on the comments gathered during dialogue and recommendation of the Municipal Treasury considering that all lease holders of LGU Daet's facilities and properties continuously pay their prescribed rental fee even those severely affected by the pandemic;

WHEREAS, this august body takes into consideration the crisis we are confronting this period of calamity, however, the commercial stalls in Daet Elevated Town Plaza continuously operated during community quarantine, hence, their requests for longer deferment of the new rate will immensely affect the target revenue collection of LGU Daet which in effect will affect the delivery of government services for the general welfare of its inhabitants;

NOW THEREFORE, after due deliberation, on motion of Councilor Pedro S. Musa, with Councilor Nestor F. Dalida as co-movant, seconded by Councilors Felix C. Abaño, Apolonio B. Panong, Ma. Eliza H. Llovit and Rossano C. Valencia;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 396-2021

AN ORDINANCE GRANTING MORATORIUM ON PAYMENT OF NEW RATE WHICH IS APPLICABLE FROM 2 AUGUST 2020 FOR THE COMMERCIAL STALLS LOCATED AT THE GROUND FLOOR OF THE DAET ELEVATED TOWN PLAZA OF THIS MUNICIPALITY UNTIL DECEMBER 31, 2020

BE IT ORDAINED by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. TITLE. This Ordinance shall also be known as "2021 Moratorium for Commercial Stalls at Daet Elevated Town Plaza in Daet, Camarines Norte".

SECTION 2. OBJECTIVE. This Ordinance aims to provide the registered lessee of commercial stalls at Daet Elevated Town Plaza economic relief due to COVID-19 pandemic.

SECTION 3. MORATORIUM.

- a. All registered LESSEE of commercial stalls at Daet Elevated Town Plaza in Daet, Camarines Norte is hereby granted moratorium on payment of new rental rate which is applicable from 2 August 2020 until December 31, 2020.
- b. From January 1, 2021 to December 31, 2021, each stallholder shall pay monthly rental fee within the first five (5) days of the month in accordance with the following matrix:



Location	Proposed Rate per square meter
Along Vinzons Avenue	Php 400.00
Along J. Lukban Street	Php 350.00
Inner Side of the Building	Php 200.00
Along Ildefonso Moreno Street	Php 250.00

- c. The interest payment being provided in the contract of lease in the event the LESSEE fails to pay his/her rent within first five (5) days of each month is hereby waived for the month of January and February 2021.
- d. The annual escalation of Five Percent (5%) on monthly rent shall begin on January 1, 2022.

SECTION 4. REPEALING CLAUSE. All ordinances, orders, rules and regulations or parts thereof contrary to or inconsistent with any of the provisions of this Ordinance are hereby amended or repealed.

SECTION 5. SEPARABILITY CLAUSE. If any provisions of this Ordinance are held invalid, the other provisions not so declared shall not be affected and will continue to be effective.

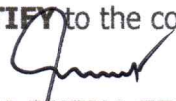
SECTION 6. EFFECTIVITY. – This ordinance shall take effect upon its approval.

ENACTED.

RESOLVED FURTHER, to furnish copies hereof, all others concerned for their information and appropriate action;

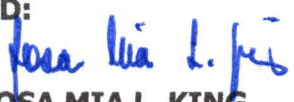
CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing:


MARIA BUENA FE ZABALA-LUARES
Secretary to the Sangguniang Bayan


COUN. PEDRO S. MUSA
Proponent

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: JAN 29 2021